

24STCV34543 24STCV34543

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV34543 Hearing Date: July 1, 2026 Dept: 512

HEARING DATE: Weds., July 1, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Atebata v. Frontier Airlines, Inc. COMP. FILED: 11-25-25

CASE NUMBER: 25STCV34543

NOTICE: NO

PROCEEDINGS: DEMURRER TO THE COMPLAINT

MOVING PARTY: Defendant Frontier Airlines, Inc.

RESP. PARTY: Plaintiff Douglas Atebata

DEMURRER

(CCP §§ 430.10, et seq.)

TENTATIVE RULING:

Defendant Frontier Airlines, Inc.'s Demurrer to Complaint is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND.

The Court further schedules an Order to Show Cause re: Walker Hearing for August 18, 2026 at 8:30 a.m. in Department 512 of Stanley Mosk Courthouse. The parties are ordered to file briefs and include evidence no later than 5 court days before the hearing to address why the case should not be reclassified to limited jurisdiction and whether the damages sought exceed the jurisdictional amount of \$35,000.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☐ Correct Address (CCP §§ 1013, 1013a) NO

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on April 6, 2026 ☐ Late ☐ None

REPLY: Filed on June 24, 2026 ☐ Late ☐ None

ANALYSIS:

I. Background

On November 25, 2025, Plaintiff Douglas Atebata ("Plaintiff"), proceeding pro se, filed the instant action against Defendant Frontier Airlines, Inc. ("Defendant") and Does 1-10, alleging causes of action for Breach of Contract, Breach of California Business and Professions Code section 17200, Negligence, and Negligent Hiring and Supervision. (Compl., p. 1.)

On April 1, 2026, Defendant filed the instant Demurrer to Complaint (the "Demurrer").

On April 6, 2026, Plaintiff filed an Opposition.

On June 24, 2026, Defendant filed a Reply.

II. Procedural Issues

As an initial matter, the Court notes that service of the Demurrer is defective. Defendant filed and served the Demurrer by electronic service only. Self-represented litigants cannot be served electronically unless they consent to receive electronic service. (Cal. Rules of Court, rule 2.251; Code Civ. Proc., § 1010.6, subd. (c).) Here, Plaintiff is self-represented, and there is nothing in the record indicating Plaintiff manifested consent to receive electronic service.

However, given the timely Opposition filed, the Court exercises its discretion to address the Demurrer on the merits.

Additionally, the Court notes that there is no proof of service filed demonstrating the Opposition was served in any manner on Defendant.

However, given the timely Reply filed, the Court exercises its discretion to address the Opposition on the merits.

III. Allegations in the Complaint

In the Complaint, Plaintiff states the following:

On October 17, 2025, Plaintiff purchased a round-trip airline ticket from Los Angeles, California to Salt Lake City, Utah from a third-party platform. (Compl., ¶ 10.) Plaintiff's outbound flight to Salt Lake City was through Delta Airlines, and Plaintiff's returning flight to Los Angeles was through Defendant. (Compl., ¶¶ 10-11.)

Plaintiff was unable to check in for the return flight either the day before the flight or at the check-in counter for Defendant on the date of the return flight. (Compl., ¶¶ 11-12.) American Airlines' employees told Plaintiff "to go through security and then get his boarding pass at the point of boarding which he did." (Compl., ¶ 12.) However, once Plaintiff went through security and got to Defendant's gate, Defendant's staff "concluded that Plaintiff was late to check-in" and told Plaintiff he was not allowed to board the aircraft. (Compl., ¶¶ 13-14, 22.)

Plaintiff missed the scheduled flight and booked another Frontier airline ticket for that same evening as Plaintiff "had a trial the next morning and needed to be in Los Angeles that night." (Compl., ¶ 17.) However, Defendant's staff reported Plaintiff to airport authorities and placed Plaintiff on a one-year ban. (Compl., ¶ 18.) Given the ban, Plaintiff was unable to take the alternative Frontier flight he booked and, as a result, Plaintiff was unable "to travel to California that night." (Compl., ¶¶ 18-20.)

As a consequence of these actions, Plaintiff's trial scheduled for the following day had to be continued and "the Judge express[ed] displeasure and dissatisfaction at Plaintiff's conduct and threatening sanctions and a possible report to the State Bar." (Compl., ¶ 21.)

Plaintiff suffered increased "blood level and anxiety" and "serious emotional distress" as a result of Defendant's actions. (Compl., ¶ 20.)

The Complaint then alleges causes of action for Breach of Contract, Breach of California Business and Professions Code section 17200, Negligence, and Negligent Hiring and Supervision against Defendant. (Compl., p. 1.)

IV. Legal Standard

"As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

V. Discussion

A. Meet and Confer

Code of Civil Procedure section 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Here, there is a meet and confer declaration filed in conjunction with the Demurrer that states defense counsel telephonically met and conferred with Plaintiff, but the parties were unable to resolve the issues raised in the Demurrer. (Motion, Caplan Decl.)

Thus, the Court finds the meet and confer requirement is satisfied.

B. Demurrer

Defendant demurs to the Complaint in its entirety on the grounds that the Complaint fails to state sufficient facts to plead any cause of action.

Cause of Action No. 1 – Breach of Contract

“To establish a cause of action for breach of contract, the plaintiff must plead and prove (1) the existence of the contract, (2) the plaintiff’s performance or excuse for nonperformance, (3) the defendant’s breach, and (4) resulting damages to the plaintiff. [Citation.]” (Maxwell v. Dolezal (2014) 231 Cal.App.4th 93, 97-98.) “If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 229, 307.) “A written contract may be pleaded either by its terms – set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference – or by its legal effect. [Citations.]” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.)

Here, the Complaint alleges that on October 17, 2025, Plaintiff purchased a round-trip airline ticket from Los Angeles, California to Salt Lake City, Utah from a third-party platform. (Compl., ¶ 10.) Plaintiff’s outbound flight to Salt Lake City was through Delta Airlines and Plaintiff’s returning flight to Los Angeles was through Defendant. (Compl., ¶¶ 10-11.) Defendant failed to perform the terms of the contract between the parties when Defendant failed to transport Plaintiff from Salt Lake City to Los Angeles on the date stated in the purchased plane ticket; Plaintiff paid the ticket fare as required and thus performed under the contract; and Plaintiff was damaged as a result of Defendant’s breach of the contract. (Compl., ¶¶ 23-28.)

However, the Complaint fails to plead the form of the alleged contract between the parties and, moreover, fails to adequately plead the existence of any kind of contract between the parties. To the extent the Complaint and Plaintiff’s Opposition to the Demurrer asserts that there is a ticket attached to the Complaint or other attachments to the Complaint (see Compl., p. 3; Opp., pp. 3-4), the Complaint filed with the Court contains no attachments whatsoever.

Thus, the Demurrer is SUSTAINED as to the first cause of action.

Cause of Action No. 2 – Breach of California Business and Professions Code section 17200

Business practices that are unfair, unlawful or fraudulent are precluded by Cal. Business & Professions Code section 17200, et seq. Under California's Unfair Competition Law ("UCL"), "an 'unlawful' practice requires violation of another statute, and a business practice may be 'unfair' even if not otherwise proscribed by statute as long as the practice is not expressly authorized by law." (People ex rel. Dept. of Motor Vehicles v. Cars 4 Causes (2006) 139 Cal. App. 4th 1006, 1016.)

" '[A] breach of contract may ... form the predicate for Section 17200 claims, provided it also constitutes conduct that is 'unlawful, or unfair, or fraudulent.' " ' " (Puentes v. Wells Fargo Home Mortgage, Inc. (2008) 160 Cal.App.4th 638, 645, emphasis in original.)

Here, the Complaint fails to identify a legally unfair, unlawful, or fraudulent business practice committed by Defendant or Defendant's staff. (Compl., pp. 3-6.) Further, and as discussed above, the Complaint fails to adequately allege a breach of contract.

Thus, the Demurrer is SUSTAINED as to the second cause of action.

Cause of Action No. 3 – Negligence

"The elements of a negligence cause of action are duty, breach, causation and damages." (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

Here, the Complaint fails to state a legal duty owed by Defendant to Plaintiff and a breach of that duty. (Ibid.)

Thus, the Demurrer is SUSTAINED as to the third cause of action.

Cause of Action No. 4 – Negligent Hiring and Supervision

"[A]n employer's duty, as defined by California authority and the Restatement, is breached only when the employer knows, or should know, facts which would warn a reasonable person that the employee presents an undue risk of harm to third persons in light of the particular work to be performed." (Federico v. Superior Court (1997) 59 Cal.App.4th 1207, 1214, emphasis in original.)

Here, the Complaint fails to allege facts demonstrating Defendant's knowledge of facts which would warn a reasonable person that the employee presents an undue risk of harm to third persons in light of the particular work to be performed. (Ibid.) Further, the Complaint fails to allege any facts demonstrating Defendant's employee(s) was unfit for the work to be performed.

Thus, the Demurrer is SUSTAINED as to the fourth cause of action.

For all these reasons, the Demurrer is SUSTAINED.

Given this is the first challenge to the Complaint and considering the assertions and arguments raised in the Opposition, the Court finds granting leave to amend is warranted. (See Goodman, supra, 18 Cal.3d at p. 348.)

Thus, the Demurrer is SUSTAINED WITH LEAVE TO AMEND.

IV. Conclusion & Order

For the foregoing reasons, Defendant Frontier Airlines, Inc.'s Demurrer to Complaint is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND.

The Court further schedules an Order to Show Cause re: Walker Hearing for August 18, 2026 at 8:30 a.m. in Department 512 of Stanley Mosk Courthouse. The parties are ordered to file briefs and include evidence no later than 5 court days before the hearing to address why the case should not be reclassified to limited jurisdiction and whether the damages sought exceed the jurisdictional amount of \$35,000.

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